

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
LATARA BROWN,

Plaintiff,

-against-

SUMMONS

Index No.:

The basis of venue is:

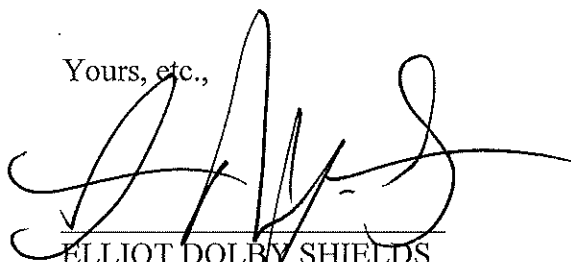
Location of the incident

THE CITY OF NEW YORK, POLICE OFFICER
SULAIMAN, Tax No. 955546, and POLICE OFFICERS
JOHN DOES # 1-5 (names and numbers of whom are
unknown at present),Plaintiff designates Bronx
County as the place of trial.Defendants.
-----X**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 29, 2017

Yours, etc.,

ELLIOT DOLBY SHIELDS
Attorney for Plaintiff
192 Lexington Ave, Suite 802
New York, New York 10016
(585) 749-2089CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007POLICE OFFICER SULAIMAN, Tax No. 955546, Transit District 33, Broadway Junction
Station, 2399 Fulton Street, Brooklyn, NY 11233

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LATARA BROWN,

Plaintiff, **VERIFIED COMPLAINT and**
-against- **DEMAND FOR A JURY TRIAL**

Index No.:

THE CITY OF NEW YORK, POLICE OFFICER
SULAIMAN, Tax No. 955546, and POLICE OFFICERS
JOHN DOES # 1-5 (names and numbers of whom are
unknown at present),

Defendants.

-----X

Plaintiff, **LATARA BROWN**, by her attorney, ELLIOT DOLBY SHIELDS, as and for
her Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the First, Fourth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, under the laws of the State of New York.
2. On or about June 3, 2016 at approximately 9:30 a.m., Plaintiff Ms. Latara Brown entered the Ralph Avenue subway station to take the C train to a job interview in Manhattan. Ms. Brown had recently moved to New York City and was unfamiliar with the subway system. When Ms. Brown attempted to swipe her MetroCard, it appeared to not be working. Ms. Brown observed several other individuals go underneath the turnstile to enter the subway and so she followed them and went underneath the turnstile also.
3. Immediately after she went under the turnstile, the Defendant Police Officer SULAIMAN of the NEW YORK CITY POLICE DEPARTMENT ("NYPD") stopped Ms. Brown. When Ms. Brown attempted to explain that she was new to New York City and that she only went under the turnstile because she observed approximately four or five other individuals do so in front of her, Defendant SULAIMAN became very rude and swore at Ms. Brown.
4. Ms. Brown was very upset that Defendant SULAIMAN swore at her and was rude to her, so she asked him to provide her with his name and shield number. Defendant SULAIMAN refused to provide his name and shield number, in violation of NYPD Patrol Guide Sections 203-09 and 206-03, and instead yelled at Ms. Brown to "shut up and sit down."
5. Ms. Brown then followed Defendant SULAIMAN'S instructions and sat down. After she sat down, Ms. Brown told Defendant SULAIMAN that she was taking out her cell phone to write down his badge number to make a complaint against him.

6. As soon as he saw Ms. Brown looking at him and holding her cell phone, Defendant SULAIMAN struck Ms. Brown in the hand and wrist, causing her cell phone to drop to the ground and break.
7. After striking Ms. Brown for no lawful purpose, Defendant SULAIMAN yelled at Ms. Brown, "do not take pictures of me."
8. Defendant SULAIMAN assaulted, battered, and subjected Ms. Brown to excessive force in retaliation to her informing him that she was going to write down his badge number in her cell phone and make a complaint against him for being rude to her, and/or due to his assumption that Ms. Brown was exercising her First Amendment right to photograph him performing his police duties in a public place.
9. Ms. Brown was engaged in legal and protected activity and was in no way interfering with Defendant SULAIMAN. Nonetheless, in gross violation of Ms. Brown's constitutional rights, Defendant SULAIMAN assaulted, battered, and used excessive force against Ms. Brown.
10. Plaintiff Ms. Brown seeks an award of compensatory damages, punitive damages, and attorneys' fees.

PARTIES

11. Plaintiff, LATARA BROWN, is a citizen of the United States and a resident of the County of Charleston, State of South Carolina.
12. Defendant THE CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.
13. NYPD Officer ("P.O.") SULAIMAN ("SULAIMAN") (Tax No. 955546), and JOHN DOES # 1-5 (hereinafter "individual NYPD defendants" or "defendant NYPD officers") are and were at all times relevant herein, officers, employees and agents of the NYPD.
14. The individual NYPD defendants are being sued in their individual and official capacities.
15. At all times relevant herein, the individual NYPD defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
16. The individual NYPD defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiffs' rights.
17. At all relevant times, the individual defendants were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.

18. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50. The Notice of Claim was filed on August 12, 2016. The City held a 50-h hearing on November 2, 2016.
19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.
20. This action is being brought within a year and 90 days of the event in which the Plaintiff was injured and had her civil rights violated by the defendants herein.

STATEMENT OF FACTS

21. On or about June 3, 2016 at approximately 9:00 a.m., Plaintiff Ms. Latara Brown entered the Ralph Avenue subway station to take the C train to a job interview in Manhattan. Ms. Brown had just recently moved to New York City and was unfamiliar with the subway system.
22. Ms. Brown attempted to swipe her MetroCard, but it appeared to her that it was not working as the turnstile kept reading "swipe again." Ms. Brown swiped her subway card four or five times, but it still appeared to her not to be working.
23. While she was attempting to swipe her MetroCard, Ms. Brown observed approximately five other individuals go underneath the turnstile to enter the subway. After observing these other individuals go under the turnstile, Ms. Brown also went under the turnstile.
24. Immediately after going under the turnstile, the Defendant SULAIMAN stopped Ms. Brown.
25. Ms. Brown attempted to explain to Defendant SULAIMAN that she was new to New York City, that she was on her way to a job interview and she did not want to be late, and that she only went under the turnstile because she observed others doing so. In response, Defendant SULAIMAN became very rude and swore at Ms. Brown.
26. Ms. Brown then requested that Defendant SULAIMAN give her his badge number, but he refused. Ms. Brown repeated her request several times, but Defendant SULAIMAN refused to give her his badge number each time, and instead told her to "Shut up and sit down" on a bench.
27. Ms. Brown followed Defendant SULAIMAN's instructions and set down on the bench.
28. Ms. Brown then informed Defendant SULAIMAN that she was taking out her cell phone to write down his badge number to make a complaint against him.
29. As soon as he saw Ms. Brown writing down his badge number in her cell phone, Defendant SULAIMAN struck Ms. Brown in the hand, causing her cell phone to drop to the ground and break.
30. After striking Ms. Brown and breaking her phone, Defendant SULAIMAN yelled at her, "do not take pictures of me!"

31. Upon information and belief, Defendant SULAIMAN assaulted, battered, and subjected Ms. Brown to excessive force in retaliation to her informing him that she was going to write down his badge number in her cell phone and make a complaint against him for being rude to her.
32. Upon information and belief, Defendant SULAIMAN assaulted, battered, and subjected Ms. Brown to excessive force in retaliation to his belief that she was exercising her First Amendment Right to photograph him performing his duties in public.
33. Ms. Brown was engaged in legal and protected activity and was in no way interfering with Defendant SULAIMAN. Nonetheless, in gross violation of Ms. Brown's constitutional rights, Defendant SULAIMAN assaulted, battered, and used excessive force against Ms. Brown.
34. The New York City Police Department Patrol Guide, procedure 203-09 (Public Contact—General), states that officers must “Courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so. Allow the person ample time to note this information, unless a CONTACT CARD (PD142-011) is offered.”
35. According to New York City Police Department Patrol Guide, procedure 206-03, Violations Subject to Command Discipline, the “failure to give name and shield number to person requesting” constitutes a Schedule “B” Violation subject to command discipline.
36. Defendant SULAIMAN's refusal to provide his shield number and contact information constituted a violation of New York City Police Department Patrol Guide, procedure 203-09, and is a Schedule “B” Violation that subjects Defendant SULAIMAN to Command Discipline under New York City Police Department Patrol Guide, procedure 206-03.
37. Ms. Brown suffered severe pain and physical injuries as a result of struck in the wrist and hand by Defendant SULAIMAN.
38. Ms. Brown's cell phone screen was broken when it was caused to crash onto the ground as a result of Defendant SULAIMAN striking her in the wrist and hand, and it later had to be replaced.
39. After she was struck by Defendant SULAIMAN, Ms. Brown called 911 to report that she had been assaulted by a police officer.
40. Ms. Brown then exited the Ralph Avenue subway station and saw an NYPD car parked on the street. Believing that the NYPD car was responding to her call, Ms. Brown approached the car to speak with the officers.
41. After speaking with the officers, they agreed to drive her to the Transit District 33 precinct so she could file a CCRB complaint. On their way, to the police station, a female police officer told Ms. Brown that Defendant SULAIMAN was a new officer, and that he needed more and better training.
42. Upon arriving at the Transit District 33 precinct, Ms. Brown completed and filed a Civilian Complaint Report against Defendant SULAIMAN.
43. Upon information and belief, Defendant SULAIMAN has not been disciplined as a result of the unlawful and unjustifiable force used against plaintiff Ms. Brown.

44. As a result of Defendant SULAIMAN striking her in the wrist and hand, plaintiff Ms. Brown suffered, among other things, bruising and pain to her hand and wrist.
45. As a result of Defendant SULAIMAN striking her in the wrist and hand, plaintiff Ms. Brown's cell phone was broken and had to be replaced.
46. The assault, battery and use of excessive force against Ms. Brown by Defendant SULAIMAN caused Ms. Brown to sustain physical, psychological and emotional trauma.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

47. Plaintiff Ms. Brown re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
48. All of the aforementioned acts of the Defendant CITY, and the Defendant POLICE OFFICERS and their agents, servants and employees ("Defendants"), were carried out under the color of state law.
49. All of the foregoing acts by Defendants deprived Plaintiff Ms. Brown of federally protected rights, including, but not limited to, the right:
 - a. Not to be deprived of liberty without due process of law;
 - b. To freedom from excessive force;
 - c. To freedom from retaliatory use of force; and
 - d. To freedom of speech and expression.
50. All of the aforementioned acts deprived Plaintiff Ms. Brown of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
51. The acts complained of were carried out by the aforementioned individual NYPD defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.
52. The acts complained of were carried out by the aforementioned individual NYPD defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant CITY and the NYPD, all under the supervision of ranking officers of said department.
53. As a result of the above constitutionally impermissible conduct, Plaintiff Ms. Brown was caused to suffer personal injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to her reputation and standing within their community.
54. Accordingly, Plaintiff Ms. Brown demands judgment against Defendants in a sum of money to be determined at trial.

55. Defendant THE CITY and the NYPD are responsible for the actions of their employees under the doctrine of *Monell v. City of New York Department of Social Services*, 436 U.S. 658 (1978).
56. As a result of Defendants' impermissible conduct, Plaintiff Ms. Brown was injured and harmed.
57. As a result, Plaintiff Ms. Brown seeks compensation in an amount to be determined at trial.

SECOND CLAIM FOR RELIEF
ASSAULT UNDER NEW YORK STATE LAW

58. Plaintiff Ms. Brown re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
59. Defendant SULAIMAN yelled at Ms. Brown to "shut up and sit down" and "don't take pictures of me".
60. Defendant SULAIMAN struck Plaintiff Ms. Brown in the wrist and hand without lawful purpose and in an unreasonably violent and aggressive manner.
61. By the aforescribed conduct, the individual NYPD defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff Ms. Brown in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff Ms. Brown.
62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.
63. The Defendant CITY, as the employer of individual NYPD defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CLAIM FOR RELIEF
BATTERY UNDER NEW YORK STATE LAW

64. Plaintiff Ms. Brown re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
65. Defendant SULAIMAN yelled at Ms. Brown to "shut up and sit down" and "don't take pictures of me".
66. Defendant SULAIMAN struck Plaintiff Ms. Brown in the wrist and hand without lawful purpose and in an unreasonably violent and aggressive manner.
67. By the aforescribed conduct, the Defendant POLICE OFFICERS, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff Ms. Brown, when they, in a hostile and/or offensive manner

struck Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.
69. The Defendant CITY, as the employer of the individual NYPD defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
70. At no point during the incidents described herein did the circumstances necessitate or support the above applications of force utilized by the Defendant SULAIMAN against Plaintiff Ms. Brown.
71. As a result, Plaintiff was damaged, harmed and injured, and seeks compensation in an amount to be determined at trial.

FOURTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

72. Plaintiff Ms. Brown re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
73. Defendant SULAIMAN yelled at Ms. Brown to “shut up and sit down” and “don’t take pictures of me”.
74. Defendant SULAIMAN struck Plaintiff Ms. Brown in the wrist and hand without lawful purpose and in an unreasonably violent and aggressive manner.
75. The level of force employed by Defendant SULAIMAN against Plaintiff Ms. Brown was objectively unreasonable.
76. The force employed by Defendants against Plaintiff Ms. Brown did not advance any proper governmental objective.
77. As a result of the aforementioned conduct, Plaintiff Ms. Brown suffered and sustained physical injuries, and her cell phone was broken.
78. As a result of Defendants’ impermissible conduct, Plaintiff Ms. Brown demands judgment against defendants in a sum of money to be determined at trial.

FIFTH CLAIM FOR RELIEF
RETALIATION FOR FIRST AMENDMENT PROTECTED EXPRESSION
UNDER 42 U.S.C. § 1983

79. Plaintiff Ms. Brown repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
80. Plaintiff Ms. Brown requested in a loud and clear voice to Defendant SULIAMAN that he provide her with his badge number because she wished to make a complaint against him for being rude to her. Ms. Brown repeated her request several times, but Defendant SULIAMAN refused to voluntarily provide her with his badge number each time.

81. After Defendant SULIAMAN refused to provide Ms. Brown with his badge number, she stated in a loud and clear voice that she was taking out her cell phone to write down his badge number so she could file a complaint against him.
82. The New York City Police Department Patrol Guide, procedure 203-09 (Public Contact—General), states that officers must “Courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so. Allow the person ample time to note this information, unless a CONTACT CARD (PD142-011) is offered.”
83. According to New York City Police Department Patrol Guide, procedure 206-03, Violations Subject to Command Discipline, the “failure to give name and shield number to person requesting” constitutes a Schedule “B” Violation subject to command discipline.
84. After Ms. Brown took out her cell phone to write down Defendant SULIAMAN’s badge number, he struck her hand and wrist and caused her phone to crash onto the ground and break.
85. After Defendant SULIAMAN struck Ms. Brown’s hand and wrist and caused her phone to crash onto the ground and break, he yelled at her “do not take pictures of me!”
86. Defendant SULIAMAN assaulted, battered and used excessive force against Ms. Brown in order to retaliate against her for asking him to voluntarily provide her with his badge number so that she could file a complaint against him for being rude to her.
87. Defendant SULIAMAN assaulted, battered and used excessive force against Ms. Brown in order to retaliate against her for informing him that she was writing down his badge number in her cell phone so that she could file a complaint against him for being rude to her.
88. Defendant SULIAMAN assaulted, battered and used excessive force against Ms. Brown in order to retaliate against her based on his assumption that she was taking photographs of him performing his duties in public.
89. Defendant SULIAMAN assaulted, battered and used excessive force against Ms. Brown in order to retaliate against her and to chill and deter her from further First Amendment protected activity.
90. Defendant SULIAMAN assaulted, battered and used excessive force against Ms. Brown without lawful purpose and in an unreasonable exercise of his authority as a police officer.
91. Defendant SULIAMAN assaulted, battered and used excessive force against Ms. Brown in order to retaliate against her for his assumption that she was lawfully exercising her First Amendment protected right to record the police performing their duties in a public place.
92. T Defendant SULIAMAN heretofore described, were designed to and did cause severe psychological and emotional distress in direct retaliation for Plaintiff Ms. Brown’s exercise of her civil and constitutional rights of free speech, free expression and to record the police performing their public duties in a public place as guaranteed by First and Fourteenth Amendments to the United States Constitution, as well as the Constitution of the State of New York.

93. As a result of the forgoing, Plaintiff Ms. Brown is entitled to compensatory damages and punitive damages against the Defendants in amounts to be determined at trial.
94. As a result of the above constitutionally impermissible conduct, Plaintiff Ms. Brown was caused to suffer personal injuries, physical injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses and damage to her reputation and standing within her community.
95. As a result of Defendants' impermissible conduct, Plaintiff Ms. Brown demands judgment against Defendants in a sum of money to be determined at trial.

SIXTH CLAIM FOR RELIEF
CONVERSION / TRESPASS TO CHATTELS
UNDER THE LAWS OF THE STATE OF NEW YORK

96. Plaintiff Ms. Brown re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
97. By interfering with Ms. Brown's possessory interests at the time of her arrest and/or detention, and thereafter, and by intentionally and maliciously destroying her property despite her claim of right, the Defendant SULAIMAN interfered, and is continuing to interfere, with Ms. Brown's property interest to her exclusion.
98. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to Ms. Brown and violated her statutory and common law rights as guaranteed by the Constitution and laws of New York. The defendants, therefore, are liable for conversion for properties destroyed from Ms. Brown, which have not been returned to her in an unharmed condition.
99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.
100. The Defendant CITY, as the employer of individual NYPD defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CLAIM FOR RELIEF
DEPRIVATION OF PLAINTIFFS' RIGHTS AS GUARANTEED BY THE
NEW YORK STATE CONSTITUTION

101. Plaintiff Ms. Brown re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
102. As a result of the aforesaid conduct of the Defendant CITY and the Defendant POLICE OFFICERS, Plaintiff Ms. Brown was deprived of rights guaranteed to her by the New York State Constitution, including though not limited to the right of the people to be secure in their persons, houses, papers and effects, against unreasonable searches and seizures as described in Article I §§ 6, 11 and 12 of the New York State Constitution.
103. The acts complained of were carried out by the Defendant SULAIMAN in his capacity as a police officer, with all of the actual and/or apparent authority attendant thereto,

pursuant to the customs, usages, practices, procedures, and the rules of the Defendant CITY and the NYPD.

104. Defendant SULAIMAN and the Defendant CITY, collectively and individually, while acting under color of state law violated Plaintiff's constitutional rights by engaging in conduct proscribed by the New York State Constitution.

105. As a result of Defendants' impermissible conduct, Plaintiff Ms. Brown was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

EIGHTH CLAIM FOR RELIEF
NEGLIGENCE UNDER NEW YORK STATE LAW

106. Plaintiff Ms. Brown re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

107. The Defendant CITY was negligent in the hiring and retention of the Defendant POLICE OFFICERS as follows:

- A. Upon information and belief, Defendant CITY failed to use reasonable care in the hiring and retention of the Defendant POLICE OFFICERS, including but not limited to Defendant SULAIMAN, who conducted and participated in the acts of subjecting Plaintiff to an unlawful seizure, assault, battery, use of excessive force, all in retaliation for her exercise of her rights guaranteed by the First Amendment to the United States Constitution and the Constitution of the State of New York, and violations of her constitutional rights in the manners described herein.
- B. Defendant CITY knew, or should have known in the exercise of reasonable care, the propensities of the aforesaid Defendant POLICE OFFICERS to engage in the wrongful conduct heretofore alleged in this complaint.

108. Defendant CITY was negligent in the training and supervision of the Defendant POLICE OFFICERS as follows:

- A. Defendant CITY knew or should have known that the requirements, guidelines, and terms of its training for the Defendant POLICE OFFICERS, including but not limited to Defendant SULAIMAN, were insufficient and inadequate to prevent the Defendant POLICE OFFICERS from engaging in the wrongful conduct heretofore alleged in this complaint.
- B. Defendant CITY knew or should have known that it failed to supervise, train and discipline the Defendant POLICE OFFICERS, including but not limited to Defendant SULAIMAN, because it failed to discipline, reprimand, punish or retrain Defendant them, upon information and belief, in response to prior instances of alleged misconduct.

109. Defendant THE CITY is also liable to Plaintiff on the basis of *respondeat superior* as a result of the constitutionally-impermissible actions of Defendant SULAIMAN and the Defendant "John Doe" POLICE OFFICERS as described herein.
110. As a result of Defendants' impermissible conduct, Plaintiff Ms. Brown was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

NINTH CLAIM FOR RELIEF
RESPONDEAT SUPERIOR UNDER NEW YORK STATE LAW

111. Plaintiff Ms. Brown re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
112. The police officers that assaulted, battered, and used excessive force against Plaintiff Ms. Brown, and who committed the other wrongs against the Plaintiff described herein, whether named individual herein or not, were employees of the Defendant CITY.
113. At all relevant times, these police officers were acting within the scope of their employment and on behalf of the Defendant CITY.
114. Defendant CITY is responsible for the torts of these police officers, and for the consequences of their actions generally, under the theory of respondeat superior.
115. As a result of Defendants' impermissible conduct, Plaintiff was were injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

TENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER *MONELL* AND 42 U.S.C. § 1983
ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICES
RELATING TO THE NYPD'S CUSTOM, PRACTICE, AND POLICY OF
MAKING RETALIATORY ARRESTS AGAINST PERSONS WHO
LAWFULLY EXERCISE THEIR FIRST AMENDMENT RIGHTS

116. Plaintiff Ms. Brown re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
117. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
118. The acts complained of were carried out by the individual defendants in their capacities as police officials pursuant to customs, policies, usages, practices, procedures and rules of the CITY and the NYPD, all under the supervision of ranking officers of the NYPD.
119. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to making retaliatory arrests against persons who lawfully photograph, document or record police activity.

120. The existence of aforesaid unconstitutional customs and policies may be inferred from

repeated occurrences of similar wrongful conduct, as documented in below:

Journalists and Photographers

a. May 30, 2007 / Robert Carneval / Carneval v. City of New York, 08 CV 9993 (DAB)(AJP) (S.D.N.Y.)

A Manhattan photographer, Robert Carneval, was arrested after filming NYPD officers in the East Village as they seized and loaded bikes, which had been locked to lampposts and parking meters, into a police van. After the photographer began filming and discussing the removals with another man, a plainclothes officer asked him for identification. When the photographer stated he had the right to film, the officer led him to a police car, examined his ID, then arrested him. Colin Moynihan, *City Settles with Two Arrested After Police Confrontation*, The New York Times (March 31, 2010), <http://cityroom.blogs.nytimes.com/2010/03/31/city-settles-with-pair-arrested-after-police-confrontation/>.

b. November 2011 / Karen Matthews, Seth Wenig, Matthew Lysiak, Patrick Hedlund, Paul Lomax and Julie Walker

In November of 2011, at least six journalists were arrested while covering the raid and eviction of Occupy Wall Street protesters from Zuccotti Park. Thirteen news organizations in New York City lodged complaints about the treatment of journalists and the suppression of coverage of the event, and ten press clubs, unions, and other groups called for an investigation into the police conduct at issue. CBS New York / AP, *Several Journalists Among Those Arrested During Zuccotti Park Raid*, CBS New York (November 15, 2011) <http://newyork.cbslocal.com/2011/11/15/officials-journalists-among-those-arrested-during-zuccotti-park-raid/>; Brian Stelter, *News Organizations Complain About Treatment During Protests*, The New York Times: Media Decoder (November 21, 2011) <http://mediadecoder.blogs.nytimes.com/2011/11/21/news-organizations-complain-about-treatment-during-protests/>.

c. November 15, 2011 / Timothy Fitzgerald / Rodriguez v. Winski, 12 CV 3389 (NRB) (S.D.N.Y.)

On or about November 15, 2011, in Zucotti Park, a publicly accessible open space, several police officers grabbed Timothy Fitzgerald, a citizen reporter who was documenting protest activities and police response to same, pulled him to the ground and arrested him.

d. August 4, 2012 / Robert Stolarik

Photographer Robert Stolarik, who worked regularly for The New York Times for more than a decade, was charged with obstructing government administration and resisting arrest after taking photographs of a brewing street fight at McClellan Street and Sheridan Avenue in the Bronx. Mr. Stolarik was taking photographs of the arrest of a teenage girl about 10:30 p.m., when a police officer instructed him to stop doing so. Mr. Stolarik said he identified himself as a journalist for The New York Times and continued taking pictures. A second officer appeared, grabbed his camera and "slammed" it into his face, he said. The arresting officer was later indicted for falsifying statements surrounding Ms. Stolarik's arrest. Russ Buettner, *Officer Is Indicted on Charges of Lying About Photographer's Arrest*, The New York Times (Aug. 26, 2013), <http://www.nytimes.com/2013/08/27/nyregion/officer-is-indicted-on-charges-of-lying-about-photographers-arrest.html>.

e. September 17, 2012 / Christopher Faraone / Faraone v. City of New York et al, 13

CV 09074 (TPG) (S.D.N.Y.)

Christopher Faraone, a journalist, was photographing a public demonstration at One Chase Manhattan Plaza when NYPD officers tackled, battered and arrested him. One of the officers directed him to cease his reporting activities within New York City.

f. September 15-17, 2012 / Julia Reinhart, Charles Meacham, and John Knefel

Five photojournalists reporting on Occupy Wall Street protesters were arrested in course of their reporting. One photographer was arrested after attempting to take a picture of an officer giving a dispersal order on a sidewalk. Another was forced to the ground and detained, while another was shoved and blocked from taking a photo by a Lieutenant in the NYPD's Legal Bureau. Christopher Robbins, *NYPD's pattern of harassing, arresting journalists continues*, Gothamist (Sept. 19, 2012) http://gothamist.com/2012/09/19/nypds_harassment_of_journalists_con.php.

g. December 12, 2011 & March 15, 2012 / Paul Sullivan, John Knefel and Justin Wedes / Rodriguez v. Winski, 12 CV 3389 (NRB) (S.D.N.Y.)

On December 12, 2011, Paul Sullivan, John Knefel and Justin Wedes, citizen reporters who were documenting protest activities and police response to same at the Winter Garden, a publicly accessible open place, were grabbed, pulled to the ground and arrested without warning or probable cause by the NYPD. On March 15, 2012, Mr. Wedes was again threatened with arrest for the same legal activity.

h. March 2012 / Unknown

In March of 2012, a cameraman from WABC-TV was struck by an officer at crime scene for unknown reasons. Carlos Miller, *NYPD Cop Assaults News Videographer At Crime Scene, Photography Is Not A Crime* (March 22, 2012) <http://photographyisnotacrime.com/2012/03/22/nypd-cop-assaults-news-videographer-at-crime-scene/>

i. November 27, 2012 / Angel Zayas / Zayas v. Kelly, 13 CV 08808 (JMF) (S.D.N.Y.)

On November 27, 2012, a freelance photographer, Angel Zayas, was arrested for photographing officers effect an unrelated arrest in Grand Central Terminal. Daniel Beekman, *Photographer trying to shoot stop and frisk sues NYC over police harassment*, New York Daily News (December 13, 2013) <http://www.nydailynews.com/news/justice-story/photog-shooting-frisking-sues-nyc-harassment-article-1.1546548>

j. January 16, 2013 / Shimon Gifter

A photographer from VIN News, a media outlet for the Orthodox Jewish community, had his camera seized and thrown to the ground, his memory card erased, and his Blackberry damaged after photographing officers stopping and frisking several young men. The photographer was also handcuffed and held up against a wall before being released with a warning.

Boruch Shubert, *Police Brutality in Midwood?*, The Jewish Voice (January 24, 2013) http://jewishvoiceny.com/index.php?option=com_content&view=article&id=2978:police-brutality-in-midwood&catid=106:international&Itemid=289; Sandy Eller, *Charedi Photographer Claims Handcuffed By NYPD After Videotaping Flatbush Police Stop*, Voz Iz Neias? (January 20, 2013). <http://www.vosizneias.com/122118/2013/01/20/brooklyn-ny-charedi-photographer-claims-handcuffed-by-nypd-after-videotaping-flatbush-police-stop/>.

k. April 19, 2013 / Justin Thomas / Thomas v. City of New York, 13 CV 6139 (SJ) (LB) (E.D.N.Y.)

A film student was arrested filming the exterior of the 72nd Precinct on April 19, 2013. Officers confiscated the student's cell phone, camera, and the camera's memory card, as well as his friend's memory card from a camera. Officers failed to remove the correct

memory card from the friend's camera, however, leaving evidence of the encounter.

Concerned Citizens

l. February 9, 2005 / Lumumba Bandele, Djibril Toure and David Floyd / Bandele v. The City of New York, 07 CV 3339 (MGC) (S.D.N.Y.)

Lumumba Bandele, Djibril Toure and David Floyd were arrested while videotaping two arrests in Bedford-Stuyvesant, Brooklyn, on February 9, 2005. "In trying to stop the police from violating the rights of others, they had their rights violated," said Kamau Franklin, a lawyer with the Center for Constitutional Rights. *Metro Briefing: New York; Manhattan: Lawsuit Against The Police*, The New York Times (April 27, 2007), <http://query.nytimes.com/gst/fullpage.html?res=9C02E2DD123EF934A15757C0A9619C8B63>.

m. September 29, 2009 / Dennis Flores / Mesa v. City of New York, 09 CV 10464 (JPO) (S.D.N.Y.)

On September 29, 2009, Dennis Flores was arrested when he photographed NYPD officers using excessive force to disperse a crowd at a festival in the Bronx. At one point prior to Flores' arrest, an NYPD officer stated it was "illegal to photograph police."

n. October 17, 2010 / Anibal Ortiz / Ortiz v. City of New York, 11 CV 7919 (JMF) (S.D.N.Y.)

On October 17, 2010, Anibal Ortiz was arrested after he began recording NYPD officers, who asked him for identification, with a cell phone camera.

o. July 11, 2011 / Caroline Stern and George Hess / Stern v. City of New York, 12 CV 04863 (SAS) (S.D.N.Y.)

On July 11, 2011, Caroline Stern was arrested and her boyfriend George Hess, was tackled and arrested after he began video recording an encounter with officers in a subway station. Kathianne Boniello, *Couple handcuffed, jailed for dancing on subway platform: lawsuit*, The New York Post (July 8, 2012) <http://nypost.com/2012/07/08/couple-handcuffed-jailed-for-dancing-on-subway-platform-lawsuit/>

p. April 27, 2012 / John Runnells / Runnells v. City of New York, 13 CV 2904 (KBF) (S.D.N.Y.)

On April 27, 2012, John Runnells' camera was seized and its footage erased after he video recorded a police traffic checkpoint. Mr. Runnells continued recording the officers after his camera was returned, and he was subsequently arrested. Once again, his camera was seized and the footage deleted.

q. June 5, 2012 / Hadiyah Charles / Charles v. City Of New York, 12 CV 06180 (SLT) (SMG) (E.D.N.Y.)

On June 5, 2012 a woman was pushed and arrested for using her phone to video record the stop-and-frisk of three unrelated young men on a public sidewalk. Rocco Parascandola, *Woman suing NYPD for wrongful arrest discovers that a key piece of evidence has mysteriously vanished from the Brooklyn stationhouse*, New York Daily News (October 17, 2013) <http://www.nydailynews.com/new-york/brooklyn/brooklyn-precinct-log-book-mystery-article-1.1487721>

r. August 2012 / Unknown

In August of 2012, a man was threatened with arrest for filming outside about 300 feet away from the security checkpoint at One Police Plaza. Carlos Miller, *NYPD Cop Fails at Intimidating Man From Video Recording Police Headquarters*, Photography Is Not A Crime (August 17, 2012) <http://photographyisnotacrime.com/2012/08/17/nypd-cop-fails->

at-intimidating-man- from-video- recording-police-headquarters/

s. January 10, 2012 / Justin Sullivan / Rodriguez v. Winski, 12 CV 3389 (NRB)

On January 10, 2012, Justin Sullivan was arrested for filming an Occupy Wall Street protest at Grand Central Terminal and his camera was confiscated. Later, Mr. Sullivan returned to the police precinct at the terminal to retrieve his camera and he was re-arrested. A witness reported an officer destroyed Mr. Sullivan's camera.

t. March 2012 / Unknown

In March of 2012, an individual video recording officers beating another man with batons was told to leave the scene and threatened with pepper spray.

Carlos Miller, *NYPD Takes Break From Beating Man To Threaten Videographer With Pepper Spray* (March 18, 2012)

<http://photographyisnotacrime.com/2012/03/18/nypd-takes-break-from-beating-man-to-threaten-videographer-with-pepper-spray/>.

u. June 14, 2012 / Dick George / George v. The City of New York, 15 CV 3108 (KAM)(SMG) (E.D.N.Y.)

On June 14, 2012, Dick George was arrested for filming police search several youths on the street in Brooklyn, and telling them to get the officers' badge numbers.

John Marzulli, *Exclusive: \$125G deal over vid of stop-frisk*, N.Y. DAILY NEWS (August 18, 2014), <http://www.nydailynews.com/news/national/125g-deal-vid-stop-frisk-article-1.1906965>.

v. September 28, 2012 / Santos Bobet / Bobet v. The City of New York, 14 CV 1396 (WHP)(JLC) (S.D.N.Y)

On September 28, 2012, at approximately 8:55 p.m., Santos Bobet observed someone being arrested near the Whitlock Avenue 6 Station in the Bronx. After beginning to videotape the arrest, he was arrested by Officer Kelvin Prado, who then along with his partner deleted the video footage.

w. March 13, 2013 / Ed Garcia Conde

Ed Garcia Conde was arrested on March 13, 2013 after he used his phone to video record a police officer's interaction with another man. Ben Yakas, *Video: Bronx Man Hauled To Jail For Exercising Right To Videotape Cops*, GOTHAMIST (March 16, 2013)

http://gothamist.com/2013/03/16/video_bronx_man_hauled_to_jail_for.php.

x. May 16, 2013 / Christina Gonzalez and Matthew Swaye

Two Harlem residents were arrested after they filmed NYPD officers conduct stop-and-frisks at a car checkpoint. Christina Gonzalez and Matthew Swaye said they were returning from a Bronx mall at about 10:30 p.m. when they noticed several vehicles stopped and Gonzalez took out her camera to begin filming. Jeff Mays, *'Professional Agitators' on NYPD 'Wanted' Flier Arrested After Filming Stop*, DNA Info (May 21, 2013), <http://www.dnainfo.com/new-york/20130521/central-harlem/professional-agitators-on-nypd-wanted-flier-arrested-after-filming-stop>.

y. August 26, 2013 / Jonathan Harris

NYPD officers arrested a Bronx teenager, Jonathan Harris, after he was filming the officers attack and threaten two young girls in a Bronx park. The teenager told the officers to leave the girls alone and began filming them with his phone. The officers began chasing him, tackled him and punched him before arresting him. Jennifer Cunningham, *Teens say they were beaten by cops in Bronx park*, New York Daily News (Aug. 29, 2013), <http://www.nydailynews.com/new-york/bronx/teens-mauled-cops-article-1.1440394#ixzz2eVh68jgw>.

z. September 19, 2013 / Sean Basinski / Basinski v. The City of New York, 14 CV 1057 (LTS) (S.D.N.Y.)

On September 19, 2013, a lawyer, Sean Basinski was arrested while using a phone to records police during a rally in front of Midtown North Precinct police station on West 54th Street. Colin Moynihan, *Street Vendors Protest Treatment by Police*, The New York Times (October 2, 2013), http://www.nytimes.com/2013/10/03/nyregion/street-vendors-protest-treatment-by-police.html?_r=0.

aa. June 5, 2013 / Rahul Saksena / Seksena v. The City of New York, 14 CV 5129 (JBW) (LB) (E.D.N.Y.)

On June 5, 2014, at approximately 10:00 p.m., Mr. Saksena was arrested in retaliation for filming a civilian police interaction in the Bushwick section of Brooklyn.

bb. September 25, 2013 / Debra Goodman / Goodman v. The City of New York, 14 CV 5261 (CM) (S.D.N.Y.)

Debra Goodman was arrested by two NYPD officer for using her cellphone to videotape an interaction between the officers and a homeless woman.

cc. March 12, 2014 / Jason Disisto / Disisto v. The City of New York, 15 CV 3296 (GHW) (S.D.N.Y.)

Jason Disisto was arrested by two NYPD officers for using his cellphone to videotape the officers performing a search on a public sidewalk. Thereafter, on December 22, 2015, NYPD Officer Johathan Munoz was indicted by the Manhattan District Attorney's Office for falsely arresting Disisto and lying about it.

Nathan Tempey, *NYPD Cop Indicted For Falsely Arresting Man Who Recorded Him*, Gothamist (Dec. 22, 2015),

http://gothamist.com/2015/12/22/cop_watch_season_2_the_reckoning.php.

dd. March 8, 2015 / David Rivera / Rivera v. The City of New York, 16 CV 3296 (PKC)(RER) (E.D.N.Y.)

On March 8, 2015, David Rivera was inside of his apartment when he heard a loud commotion in the hallway. When he opened his apartment door and saw numerous NYPD officers violently arresting his neighbor, he began filming the interaction on his cell phone. In response, NYPD Sergeant Diana Pichardo pointed her gun at Rivera, took his cell phone, and falsely arrested and charged him with numerous felonies, each of which was dismissed at arraignment.

John Marzulli, *NYPD sergeant aims gun at man recording her, busts into his home*, N.Y.

DAILY NEWS (June 5, 2016), <http://www.nydailynews.com/new-york/nypd-accused-arresting-man-recording-video-cops-article-1.2675620>.

ee. May 20, 2016 / Eric Worell

On May 20, 2016, NYPD Officer Risel Martinez pointed his gun at 19-year-old Jahnico Harvey, who was filming him violently arrest a man in an apartment building. After the first arrest, another cell phone video shows Officer Martinez walking up to Harvey, punching him in the face, throwing him on the ground and arresting him.

John Marzulli, *NYPD cop who pulled gun, punched man recording him at Harlem apartment building a 'good' officer, colleagues say*, N.Y. DAILY NEWS (May 21, 2016), <http://www.nydailynews.com/new-york/nypd-pulled-gun-punched-harlem-man-good-officer-article-1.2645211>.

ff. June 11, 2016 / Threstan Ralph

On June 11, 2016, Threstan Ralph was arrested for filming five NYPD officers violently arresting a woman on Glenwood Road.

John Marzulli, *NYPD accused of arresting man for recording video of cops*, N.Y. DAILY NEWS (June 16, 2016), <http://www.nydailynews.com/new-york/nypd-accused-arresting->

man-recording-video-cops-article-1.2675620.

121. As a result of this ongoing, widespread practice of NYPD officers interfering with and chilling individuals' First Amendment rights, the City entered into a consent decree in which it stipulated that "it is the policy of the New York City Police Department ... that when a person (or persons) is detained, stopped or arrested in public areas, a person or persons not involved in the conduct for which the first person is stopped or arrested may remain in the vicinity of the stop or arrest as an onlooker or onlookers, subject to the safety of the person stopped . . . the general public, and officers ... None of the following constitutes probable cause for arrest or detention of an onlooker ... (c) Taking photographs; (d) Remaining in the vicinity of the stop or arrest." Stipulation and Order, *Black v. Codd*, No. 73 Civ. 5283, 12 (S.D.N.Y. June 1, 1977). The NYPD's practice and custom of interfering with the rights of individuals who seek to record police activity misconstrues, or in the alternative, violates this consent decree.
122. In 2014, the NYPD put out a FINEST Message (the "FINEST Message") addressing "Recording of Police Action by the Public." The FINEST Message states, "Members of the service are reminded that members of the public are legally allowed to record (by video, audio, or photography) police interactions. These interactions include arrest and other situations." It further prohibits NYPD officers from "interfer[ing] with a person's use of recording devices to record police interactions." Finally, it acknowledges, "intentional interference such as blocking or obstructing cameras or ordering the person to cease ... violates the First Amendment." FINEST Message from Chief of Department, NYPD to All Commands, SER#: 9881632 (August 6, 2014).
123. Upon information and belief, the NYPD has not instituted any training, monitoring, or supervision to ensure that officers comply with the consent decree and FINEST Message, and refrain from violating First Amendment rights through suppression of videotaping. Upon information and belief, the current training NYPD officers receive does not sufficiently train, monitor, supervise or discipline officers to identify circumstances under which officers are the NYPD's practice and custom of interfering with the rights of individuals who seeks to record police activity violates this FINEST Message.
124. The City's failure to train, monitor, supervise, and discipline NYPD officers to respect individuals' First Amendment rights amounts to deliberate indifference to the constitutional violations committed by the NYPD against individuals including Plaintiff Ms. Brown. Given the ubiquity of cameras and smartphones, the City should have anticipated that individuals would attempt to record police performing their official duties in public places. As of the date of plaintiffs arrest the City knew, or should have known, that NYPD officers had a history of mishandling situations and committing constitutional violations where a member of the public attempts to record police activity.
125. The NYPD's practice and custom of interfering with individuals who, without interfering with police activity, record or attempt to record police officers is so persistent, widespread, and pervasive as to constitute a custom or usage and imply the constructive knowledge or acquiescence of the City and its policymakers. The numerous instances of abuse, a small number of which are described above, particularly given that a number of lawsuits have been filed against the City, the NYPD, and NYPD officers demonstrates that the City is, or should have been, aware of the constitutional violations committed by the NYPD. The constitutional violations are so numerous, persistent, and pervasive that the need for corrective action is obvious, and the City's failure to take any such action constitutes deliberate indifference to the violations. This deliberate indifference to the

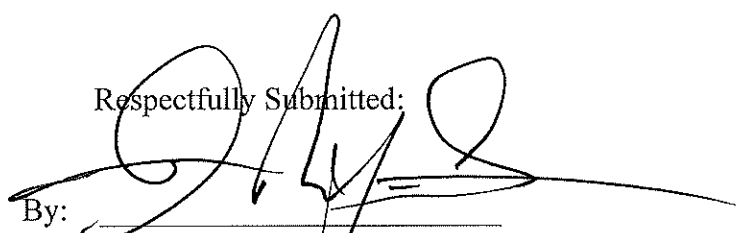
NYPD's widespread deprivation of constitutional rights can be considered a policy, practice, or custom of the City.

126. The City, through its policymakers and agents, condoned, permitted, encouraged, and/or ratified the NYPD practices and customs challenged herein, which allowed NYPD officers to disregard and violate Plaintiff Ms. Brown's exercise of her First Amendment rights when she attempted to request Defendant SULAIMAN's badge number and write it down in her cell phone, and which Defendant SULAIMAN perceived to be Ms. Brown attempting to record him performing his official duties on June 3, 2016.
127. Furthermore, the City, through its policymakers and agents, has been deliberately indifferent to the rights of individuals, such as Plaintiff Ms. Brown, who come into contact with NYPD officers as they record, attempt to record, or are perceived to be attempting to record the officers. The City failed to adequately train, monitor, supervise, and discipline its officials, employees, and agents, including the NYPD and the individual NYPD defendants named herein; specifically, to respect and not violate the First Amendment rights of individuals such as Ms. Brown. As a result of the City's failure, Ms. Brown's First Amendment rights were violated when she struck in the wrist and hand due to her attempt to request and write down Defendant SULAIMAN's shield number, which he perceived to be Ms. Brown attempting to photograph him engaged in police activity in a public place.
128. The practices and customs of the NYPD condone or tacitly authorize NYPD officers—acting as employees and agents of the City—to engage in unconstitutional seizures of cell phones and cameras being used for First Amendment activity. These practices and customs caused Ms. Brown to suffer a violation of her constitutional rights and were the moving force behind the deprivation of Ms. Brown's constitutional rights.
129. Plaintiff Ms. Brown's assault, battery and subjugation to the use of excessive force effectively chilled and infringed upon her exercise of her First Amendment rights. Thus, Plaintiff Ms. Brown suffered injury as a result of the Defendants' conduct.
130. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

WHEREFORE, Plaintiff LATARA BROWN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages, attorneys' fees, costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
August 29, 2017

Respectfully Submitted:

By: 

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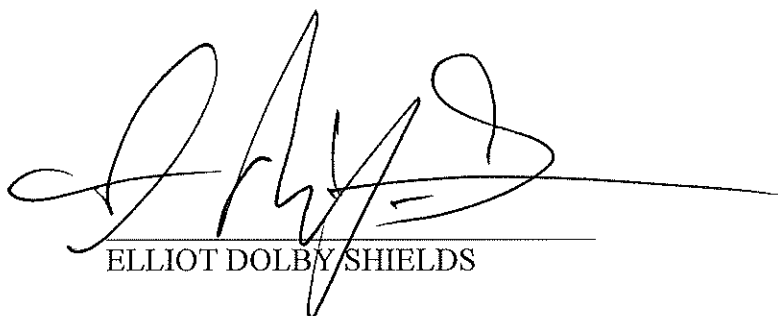
POLICE OFFICER SULAIMAN, Tax No. 955546, Transit District 33, Broadway Junction
Station, 2399 Fulton Street, Brooklyn, NY 11233

ATTORNEY'S VERIFICATION

ELLIOT DOLBY SHIELDS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **THE LAW OFFICE OF ELLIOT DOLBY SHIELDS**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 29, 2017



ELLIOT DOLBY SHIELDS